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MEMORANDUM

THE WHITE HOUSE

WASHINGTON

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MEMORANDUM FOR THE PRESIDENT

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FROM: Henry A. Kissinger HK

SUBJECT: The Middle East--Some Policy Considerations

The policy recommended to you at Saturday's NSC meeting contained two elements: (1) responding quickly to the French proposal for a four-power meeting and (2) pressing Israel toward a general political settlement. Since these are both complex issues, you should have an opportunity, before deciding, to see where each of these decisions would take you.

The French note delivered January 16 (attached) suggested that the UN representatives of France, Britain, the USSR and US meet to discuss how to contribute to peace in the Middle East. The only specific agenda item suggested was the Soviet peace plan (contained in the December 30 note to us).

De Gaulle has long pressed for a four-power group, presumably to enhance France's influence. Ambassador Shriver assumes he would prefer a grandiose scheme which might operate independently of the UN and work toward an imposed settlement. However, French diplomats for the moment say they are thinking only of an ad hoc group and would expect to keep Jarring and U Thant fully informed.

The implications of our responding positively are: (1) This would be the first step in committing ourselves to a more active diplomatic effort. (2) It would commit us--though not exclusively--to a forum which everyone recognizes would have serious pitfalls for us.

The chances are that we shall decide to pursue a general political settlement more actively. But before you do, you should know that there is some opposition to this course, and you should have in advance a very clear picture of its costs. Secretary Laird hinted at this opposition Saturday but did not push it. On the Review Group, however, the Defense Department civilian representative urged a much more limited scheme than that advanced by State.

I. Arguments for and against seeking a general settlement now

Most of our experts believe that the Near Eastern governments, in the present atmosphere of mounting violence, will never by themselves be able to achieve a settlement. Without hope of a political way out, they can

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only prepare for the next military round. In Israel, pressures will increase to deploy strategic missiles and nuclear weapons. Arab terrorism will gain increasing support, and moderate Arab governments -- our friends -- will find it more and more difficult to follow a middle-of-the-road and pro-Western course. They believe that King Hussein will be unable to settle with Israel unless Nasser settles at the same time.

However, those who argue against trying now for a general settlement (one including the UAR, Jordan, Israel) make these points:

1. A general settlement is just not in the cards now because Nasser will not be able to commit himself to the kind of peace Israel demands.

2. Therefore, we should not waste our political capital trying to achieve the impossible.

3. We should instead concentrate on steps that could at the least help confine the Arab-Israeli conflict and at best be a start toward a broader settlement. We should stop trying to bring Israel and Egypt together and concentrate (a) on persuading Israel not to deploy strategic missiles or nuclear weapons -- which would increase the likelihood of Soviet intervention which would challenge us -- and (b) on encouraging an Israel-Jordan settlement.

4. We should particularly concentrate on U.S.-Soviet arrangements which could slow the pace of the Near Eastern arms race and serve as a restraining influence on the nations in the area -- at least arrangements which would assure U.S.-USSR disengagement if hostilities break out again.

The issue here is whether by going all out for a general settlement -- which may be impossible now -- we would cripple our ability to contain the conflict in the absence of a settlement. State Department believes there is enough chance of a general settlement now -- if we can move Israel off its demand for a utopian peace and Nasser to commit himself in the face of radical Arab opposition to end twenty years of war -- to warrant trying. But the minority view (the civilian component of Defense) raises serious questions that should be considered before we plunge ahead. At the very least, any push for a settlement would cost us heavily in Israel and leave our influence diminished for a time.

II. Ways of Trying for a General Settlement

If after considering that argument you believe we should press for a general settlement now, you should be aware that there are grave reservations about the usefulness of the four-power approach. The main

argument for going ahead, as it was presented Saturday, is that we have no alternative -- that we are "boxed in." Although the four-power approach would not completely exclude a U.S. -Soviet dialogue, it would place it in a difficult context. It is therefore worth looking at the relative advantages and dangers of each track.

A. Four-Power Approach

1. The pros are:

a. Since France, the USSR, U Thant, Britain and the Arabs favor it, we would isolate ourselves if we rejected it.

b. Since it would involve four of the permanent members of the UN Security Council, it could provide a useful UN umbrella for the U.S. -USSR talks which could go on in any case.

c. It could be a vehicle for bringing the French as well as the USSR closer to our position.*

d. It might produce a useful exhortation to the Near Eastern governments to respect the cease-fire and give them some hope of progress.

e. In a broader context it would be desirable for your Administration not to have its first move on the Middle East or in response to de Gaulle be a negative one.

f. It might also be reassuring if Western Europeans felt we were consulting them (although many would not admit that France speaks for them).

In short, it is necessary, manageable and has some marginal advantages.

2. The cons are:

a. Neither France nor Britain has significant leverage in the Near East; the U.S. and USSR do.

b. De Gaulle is riding a popularity wave in the Arab countries because of his arms embargo in Israel and his condemnation of Israeli policy, and he is unlikely to take any anti-Arab stand. Our association

*We may be able to use de Gaulle's interest in closer relations with you to persuade him to adopt a Middle East stance closer to ours.

with him would make it harder to move the Israelis and would arouse maximum Israeli and Jewish counter-pressures.

c. The UK is so anxious to get the Suez Canal open that it may be more willing to compromise on the essentials of a secure settlement than we are.

d. A four-power forum would be stacked 3-1 against us. Moreover, we would be starting the U. S. -USSR dialogue in a forum where we would be confronting not only the USSR but two NATO allies as well.

e. The French note proposed putting the Soviet peace plan at the top of the agenda, so unless we successfully resisted that we would be working from the wrong end of desirable alternatives.

f. We say we can keep the proceedings informal, but these things have a way of becoming institutionalized, and that could undercut the Jarring mission without having enough power to produce compensating results.

g. Finally, if we find ourselves blocking proposals by the three other powers, we may end up doing more harm than good to our relationship with de Gaulle for the sake of a passing moment of good will.

The issue is not whether to accept or reject the French proposal but to choose among various forms of response, since the one proposes a direct affront to de Gaulle. These possibilities are discussed later.

B. Two-Power Dialogue (U. S. -USSR)

1. The pros are:

a. This reflects the power realities in the Middle East, and the Russians have assured us that they consider this the primary channel, even though they have accepted the four-power proposal. If there is to be a general settlement, only the USSR has the necessary leverage with Nasser to produce it, and only we come close to having the necessary influence with Israel.

b. Each of us could consult directly with these parties while negotiating and yet retain the desirable UN umbrella by turning over our product to Jarring.

c. It would be easier to position the Middle East on the U.S.-USSR agenda -- particularly to establish the linkage to strategic arms talks -- in a two-power context.

d. It would also position the Middle East into the whole context of East-West relations with maximum control and linkage to other negotiations such as those on force limitations.

2. The cons are:

a. It might give the USSR credit for any settlement and enhance its position in the area to our detriment. The counters to this point are that all the Arabs know only the U.S. can move Israel; that settlement which has even a remote chance of Israeli acceptance would have enough elements unpalatable to the Arabs so that the Russians would not win popularity by pushing it; and that the U.S. can hold its own in peaceful competition with the USSR so should be willing to accept passing credit to the USSR, if any, for the sake of a settlement that would help us more than Moscow.

b. We have no strong evidence that the Soviets want the kind of basic peace settlement we have been seeking. Although their intent is debatable, they seem to be aiming at a limited accommodation to reduce the possibility of a sudden crisis with dangerous and unforeseeable consequences. Limited accommodation would leave enough unsettled grievances for them to use in keeping the Arabs dependent on their support. If the Soviets are not sincere, we risk walking into a propaganda trap. The counters to this are that the Soviets are the ones who have persistently pushed this dialogue, that they have already moved toward our position and that we will never know their real position until we pin them down in negotiation.

c. Israel will object to our negotiating their fate with anyone, though they are likely to react somewhat less sharply to the two-power than to the four-power approach. Agreement directly between them and the Arabs is fundamental to their position -- and, they believe, to ours. They hold that a lasting settlement cannot result unless the parties themselves develop one they can live with. If we went down either the two-power or the four-power track, we would have to cope with vociferous Israeli charges that our position had weakened, that we had been taken in by Soviet blandishments and that, worst of all, we had undercut their position by compromising on the central point in that position.

III. Where Do We Go From Here?

A. Four-Power Track

If after hearing these arguments, you judged that we are sufficiently "boxed into" responding positively to the French proposal, you would still have two choices:

1. respond positively with the intent of moving at an early date into full-scale ambassadorial talks; or
2. respond positively but with intent to drag out preliminary lower level consultations as long as possible while getting serious U.S. - USSR talks started.

I recommend the second course as discussed below.

Whichever response you choose, you would have several ways of playing:

1. respond in writing and announce here or at State;
2. respond orally and announce here or at State;
3. respond either way but just let the news out at State in response to a reporter's question, not making any splash of it.

The advantages of precision and courtesy in a written reply would probably outweigh the advantage of de-emphasis in any oral reply. But in light of probably Israeli reaction, you might wish to play it in as low key as possible, letting the news come out at State or in New York.

B. Two-Power Track

If you chose to follow the two-power course -- either by itself or with the four-power track as an adjunct -- you would have a choice between waiting for the USSR to respond to the U.S. note of January 15 and framing our own proposal and taking it to them. The advantage of waiting would be to test their seriousness. The last U.S. note asked them to clarify some obvious ambiguities in their December 30 note. But if we are going to wait, we should probably find a way to let Moscow know we are awaiting their reply. The advantages of taking the initiative would be to get our own plan on the table, to seize the propaganda initiative and to give the Arabs the impression that you are serious about wanting a just settlement. Of course, we must consider this in connection with other initiatives we plan with Moscow.

C. The Terms of a Settlement and Our Relationship with Israel

Whether you choose the four-power or the two-power track as our main forum, you should see a specific plan of the kind of settlement we would push for.

The Near East is an area where local passions make chances for a reasonable settlement slim. There is danger of our inadvertently creating an atmosphere of despair or euphoria where one side or the other would harden its position without real cause.

It is also true that political settlements have worked only when ~~they have increased the will of the parties to make them work or have~~ reduced their ability to make war. Given Arab-Israeli hostility, the permanence of a settlement will depend at first mainly on the latter. We must be sure such a settlement is possible before we begin negotiating. If it is not, we might wish to consider leaving Israel where it is.

Finally, persuading Israel to accept any political arrangement will require a combination of pressure and the enticement of sound U.S. or international guarantees. ~~Before you commit yourself to a course that will involve pressing Israel, with all its implications for arousing broad Congressional and popular opposition, it is essential that you know whether you can defend our position in terms of our national interest, of providing genuine security for Israel and of reducing chances of further conflict in the area.~~ Before you can offer any sort of guarantee, it is essential that you be able to explain to Congress exactly what U.S. commitment would be involved and what its international context would be.

Therefore, before any U.S. negotiator gets down to serious talk, the State Department should be required to give you for discussion at an early NSC meeting its proposal -- or perhaps alternatives -- for the terms of a final settlement that we should aim for.

Recommendations:

1. That the Tuesday NSC meeting review the principal options open to us in the light of this analysis and that provided through the Review Group for last Saturday's meeting.
2. That at the end of the meeting you provide guidance on the relative emphasis you wish put on the two-power and the four-power approaches.

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3. That at the end of the meeting you instruct the NSC Interdepartmental and Review Groups to submit (a) description of the terms of settlement to guide our negotiators and (b) a plan of action for relating whatever negotiating tracks you may choose to each other and to broader elements of our various bilateral relationships (for example, with Israel, France, USSR, UAR).

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